

26PSCV01673 26PSCV01673

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-08-17

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Case Number: 26PSCV01673 Hearing Date: August 17, 2026 Dept: H

Ramirez v. Hyundai Motor America, Case No. 26PSCV01673

ORDER ON PETITION TO COMPEL ARBITRATION

Defendant Hyundai Motor America's
petition to compel arbitration is DENIED.

Background

On May

11, 2026, Plaintiff Robert Ramirez ("Plaintiff") files this Song-Beverly action against Defendant Hyundai Motor America ("Defendant"), alleging (1) breach of express warranty under the Song-Beverly Consumer Act Warrant Act, (2) breach of implied warranty, and (3) violation of Business and Professions Code section 17200.

Request

for Judicial Notice

Under

Evidence Code section 452(d), the Court may take judicial notice of records from this and other courts. Judicial notice is taken of the existence of the filing, not the truth of matters asserted therein. (Fowler v. Howell (1996) 42 Cal.App.4th 1746, 1749.)

Defendant's

request for judicial notice of the complaint is GRANTED.

Legal Standard

Both California and federal law both strongly favor arbitration, but require courts to enforce arbitration agreements only where the parties actually agreed to arbitrate. (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413; AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.)

The petitioner bears the burden of proving the existence of a valid arbitration agreement; the opponent bears the burden of proving defenses to enforcement. (Banner Entertainment, Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 356-357.) Where the existence of an agreement is contested, courts apply the three-step burden-shifting framework articulated in Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165-166.

Discussion

Existence of Arbitration Agreement

Defendant

relies on two alleged arbitration agreements: (1) an arbitration provision clause printed within the owner's handbook warranty booklet, and (2) an arbitration clause contained within the Connected Services Agreement ("CSA"), which Plaintiff allegedly accepted when he enrolled in Hyundai's "Bluelink" services.

1. Warranty Arbitration Provision

Defendant

first invokes an arbitration clause that is contained in the Owner's Manual and Express Warranty for Plaintiff's vehicle.

The

warranty booklet contains an arbitration clause with a 30-day opt-out procedure. Defendant's position is that Plaintiff's failure to opt out constitutes assent.

However,

Defendant provides no evidence that Plaintiff received the warranty booklet,

viewed the arbitration clause, or was advised of the opt-out mechanism. As such, Defendant cannot establish a prima facie showing of agreement.

Further,
under *Ford Motor Warranty Cases* (2025) 333 Cal. Rptr. 3d 897, 906-909, a manufacturer's warranty booklet is not a bilateral contract and does not create mutual assent to arbitrate merely because a consumer later sues under the Song-Beverly Consumer Warranty Act. Warranty obligations are statutory, not contractual. Reliance on the warranty does not convert the warranty booklet into an enforceable arbitration agreement.

Accordingly,
Defendant has not met its burden to show the existence of any agreement to arbitrate through the warranty booklet.

2. Connected Service Agreement

Arbitration Provision

Defendant
next contends that Plaintiff agreed to the CSA—and its arbitration clause—when enrolling in “Bluelink” services. Even setting aside the lack of evidence that Plaintiff actually viewed or agreed to the CSA terms, the CSA is directed solely to “Connected Services”—remote-access features, roadside assistance, and similar functions. Its subject matter expressly excludes the vehicle's warranty and mechanical condition, as Paragraph 10 makes clear that “THE VEHICLE'S LIMITED WARRANTY does not cover the Connected Services.”

Given
the CSA's limited subject matter, the reference within the arbitration clause to disputes “relating to . . . the Vehicle” must be construed under *ejusdem generis* to mean disputes relating to the Vehicle as it pertains to Connected Services, not general defect or warranty claims. (See *Lawrence v. Walzer & Gabrielson* (1989) 207 Cal.App.3d 1501, 1506.)

No
reasonable reading of the CSA extends its arbitration clause to Song-Beverly claims concerning mechanical defects. The parties' intent, as reflected in the contract language and structure, was limited to disputes about “Connected Services,” not warranty performance.

Thus,

the CSA does not contain an arbitration agreement covering the present claims.

Equitable

Estoppel

Defendant

alternatively invokes equitable estoppel, arguing that because Plaintiff sues for breach of warranty, Plaintiff must be estopped from rejecting the arbitration clause printed in the warranty booklet.

Under

Ford Motor Warranty Cases 333 Cal. Rptr. 3d 897, 908-909, and Goldman v. KPMG LLP (2009) 173 Cal.App.4th 209, 219, equitable estoppel applies only when the plaintiff's claims depend on or invoke the terms of a contract containing an arbitration clause. Here, however there is no contract between Plaintiff and Hyundai containing an arbitration clause (as the warranty booklet is a unilateral manufacturer document and does not reflect bilateral assent), and Plaintiff's Song-Beverly claims arise from statutory obligations, not from contract terms contained in the warranty booklet.

Accordingly,

equitable estoppel does not supply a basis to compel arbitration.

Conclusion

Defendant's

Motion to Compel Binding Arbitration is denied.